

26STCV08842 26STCV08842

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 26STCV08842 Hearing Date: August 17, 2026 Dept: 732

Lucia Correa v. Amir

Armon Mobasher

Monday,

August 17, 2026

CASE NUMBER: 26STCV08842

UNOPPOSED

Motion

to Strike Punitive Damages filed by Amir Armon Mobasher

Facts:

This is an action for personal injury arising out of an automobile collision.

Procedural

History: Plaintiff filed the Complaint on March 17, 2026, alleging causes of action for:

1.

Motor Vehicle Negligence

2.

Intentional Infliction of Emotional Distress

On

May 12, 2026, Defendant filed this motion to strike. No opposition has been filed.

Analysis:

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436; *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Defendant

moves to strike the prayer for punitive damages from the complaint, arguing the allegations do not plead facts showing Defendant was guilty of malice, oppression or despicable conduct to warrant punitive damages.

To state a claim for punitive damages under Civil Code section 3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. (*Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033, 1042.) The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. (*Id.*) A motion to strike may lie where the facts alleged, if proven, would not support a finding that the defendant acted with malice, fraud or oppression. (*Turman v. Turning Point of Central California* (2010) 191 Cal. App. 4th 53, 63.)

“Malice” is defined in section 3294(c)(1) as “conduct which is intended by the defendant to cause injury” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” “Oppression” is defined in section 3294(c)(2) as “despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of that person’s rights.” The term “despicable” has been defined in the case law as actions that are “base,” “vile,” or “contemptible.” (See, e.g., *Shade Foods, Inc. v. Innovative Products Sales & Marketing, Inc.* (2000) 78 Cal. App. 4th 847, 891.)

To prove that a defendant acted with “willful and conscious disregard of the rights or safety of others,” it is not enough to prove negligence, gross negligence or even recklessness. (*Dawes v. Superior Court* (1980) 111 Cal. App. 3d 82, 87.) Rather, a plaintiff must allege facts demonstrating that “the defendant acted in such an outrageous and reprehensible manner that the jury could infer that he [or she] knowingly disregarded the substantial certainty of injury to others.” (*Id.* at 90). Further, the allegations must be sufficient for a reasonable jury to conclude that Defendant’s conduct was “despicable” defined as “base, vile or contemptible.” (*College Hospital Inc. v. Superior Court* (1994) 8 Cal. 4th 704, 725.)

Further, “[t]here must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff’s interests and deliberately failed to avoid these consequences.” (*Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co.*, 185 Cal. App. 3d 1149, 1155 (1986); see also *Angie M. v. Superior Court*, 37 Cal. App. 4th 1217, 1228 (1995) [“Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probably dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences”].)

In *Brooks v. E.J. Willig Truck Transp. Co.* (1953) 40 Cal.2d 669, the court held that a hit and run cannot give rise to damages unless the fact that the defendant fled the scene was “a proximate cause of further injury or death” beyond the accident itself. (*Id.* at 679.) Brooks did not consider the issue of whether punitive damages can be imposed based on a hit and run. It did, however, hold that fleeing an accident scene only constitutes a tort if the act itself causes the plaintiff additional injury above and beyond the damages caused by the collision that preceded flight. (*Id.*) For example, if a plaintiff is struck and is seriously bleeding following the accident, the fact that the defendant hits and runs could cause additional damage due to loss of blood, death, etc. If, however, the accident causes immediate soft tissue damage, no amount of aid would reduce or minimize the future damages, and the act of hitting and running would not give rise to additional damages. If the act of hitting and running, in and of itself, does not give rise to a tort, then it logically follows that the act cannot give rise to a claim for punitive damages.

In the complaint, Plaintiff alleges that Defendant was erratically driving on the

freeway and weaving through traffic in a dangerous manner. It further alleges that Defendant first cut off Plaintiff and then ended up behind her due to traffic. Plaintiff further alleges while recklessly weaving through traffic, Defendant rear-ended Plaintiff, and fled the scene instead of pulling over.

Plaintiff's

general allegations are insufficient to show that Plaintiff experienced additional injury above and beyond the injuries from the collision, due to Defendant's fleeing from the scene. Plaintiff must plead additional injury, and with greater specificity in order to state a prima facie claim for punitive damages. Thus, the motion is granted.

Conclusion:

Defendant Amir Armon

Mobasher's Motion to Strike is GRANTED with 20 days leave to amend.

Superior Court of
California

County of Los
Angeles

Department 732

Lucia Correa,

Plaintiff,

v.

Amir Armon Mobasher.

Defendant.

Case No.:

26STCV08842

Hearing Date: August 17, 2026

[TENTATIVE] RULING RE:

Defendant Amir Armon Mobasher's Motion to Strike

Defendant Amir Armon

Mobasher's Motion to Strike is GRANTED with 20 days leave to amend.

Defendant to give notice.

Dated: August 17, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court